

23STCV13465 23STCV13465

County: los-angeles

Division: Civil Law and Motion

Department: 512

Hearing date: 2026-08-05

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Case Number: 23STCV13465 Hearing Date: August 5, 2026 Dept: 512

HEARING DATE: Weds., August 5, 2026 JUDGE /DEPT: Mkrtchyan/512

CASE NAME: Merchain

v. LA Dodgers, LLC COMP.

FILED: 06-13-23

CASE NUMBER: 23STCV13465 SAC

FILED: 01-21-26

NOTICE: NO

PROCEEDINGS: MOTIONS

TO QUASH SUBPOENA FOR BUSINESS RECORDS

MOVING PARTY: Plaintiff

Jamie Merchain

RESP. PARTY: Defendant Los Angeles Dodgers, LLC

MOTIONS TO QUASH SUBPOENAS

(CCP § 1987.1.)

TENTATIVE RULING:

Plaintiff's Motion to

Quash Deposition Subpoena of Business Records Served on Third-Party the Barnes

Law Firm is GRANTED.

Plaintiff Jaime Merchain's

Motion to Quash Deposition Subpoena for Production of Business Records Served

on Third-Party BD&J Law Firm; Motion to Quash Deposition Subpoena for

Production of Business Records Served on Third-Party Jacob Seropian, Esq.; Motion

to Quash Deposition Subpoena of Business Records Served on Third-Party Martin

Kanarek, Esq. are GRANTED IN PART and CONTINUED IN PART.

The Motions are GRANTED as

to all items except for the 1st, 8th, 13th, 14th, 17th, and 20th items in the

BD&J, Kanarek, and Seropian subpoenas. The Motions are CONTINUED to Tuesday

September 8, 2026, at 9:00 a.m. in Department 512 of the Stanley Mosk

Courthouse as to these six items.

Within 10 days from this

Court's order, the moving party on the respective motion is to produce a

privilege log as to these six requests for each subpoena. Thereafter, the

parties are to submit supplemental briefing at least 7 days prior to the next

scheduled hearing to address whether any dispute regarding privilege still

exists as to these items.

Moving party is ordered to

give notice.

SERVICE:

☒ Proof of

Service Timely Filed (CRC, rule 3.1300) OK

☐ Correct Address (CCP §§ 1013, 1013a) NO

☒ 16/21 Court

Days Lapsed (CCP §§ 12c, 1005(b)) OK

OPPOSITION: Filed

on July 23 & 24, 2026 ☒ Late [

] None

REPLY: Filed

on July 29, 2026 ☐ Late [

] None

ANALYSIS:

I.

Background

On January 21, 2026, Plaintiff Jamie

Merchain ("Plaintiff") filed a Second Amended Complaint ("SAC") against

Defendant Los Angeles Dodgers, LLC ("Defendant") and Does 1-50, alleging causes of action for Premises Liability and Negligence. The underlying action involves Plaintiff tripping and falling over an "uplifted portion of raised asphalt, believed to have been caused by an uplifted tree root... positioned at/near the Centerfield entrance gate located in the Right Pavilion between the parking lot and Dodger Stadium on April 20, 2022... The fall caused Plaintiff to suffer severe bodily injuries." (SAC, p. 2.)

On March 4, 2026, the Court held an Informal Discovery Conference.

On June 1, 2026, Plaintiff filed the instant Motion to Quash Deposition Subpoena for Production of Business Records Served on Third-Party BD&J Law Firm ("BD&J Motion"); Motion to Quash Deposition Subpoena for Production of Business Records Served on Third-Party Jacob Seropian, Esq. ("Seropian Motion"); Motion to Quash Deposition Subpoena of Business Records Served on Third-Party Martin Kanarek, Esq. ("Kanarek Motion"); and Motion to Quash Deposition Subpoena of Business Records Served on Third-Party the Barnes Law Firm ("Barnes Motion") (the "Motions").

On July 23, 2026, Defendants filed an Omnibus Opposition to the Kanarek Motion, Seropian Motion, and BD&J Motion.

On July 24, 2026, Defendants filed an

Opposition to the Barnes Motion.

On July 29, 2026, Plaintiff filed Replies

in support of the BD&J Motion, Barnes Motion, Kanarek Motion, and Seropian

Motion. Plaintiff also filed a Supplemental Declaration in support of the

Kanarek Motion, BD&J Motion, and Seropian Motion.

II.

Procedural

Issues

The Motions

As an initial matter, there is no

separate statement accompanying any of the Motions. (See Cal Rules of Court,

rule 3.1345, subd. (a)(5).) Thus, the Motions are procedurally deficient.

Further, the Motions fail to include

the electronic service addresses to which the Motions were served. However,

given the Oppositions filed addressing all four Motions, the Court exercises

its discretion to address the Motions on the merits.

Finally, the Court notes that the

Court's reservation system states five motions are on calendar for the instant

hearing date; however, the Court's docket reflects only four motions are

substantively set for hearing on the instant hearing date. Plaintiff is

cautioned to avoid duplicate entries in making motion reservations in the

Court's system.

The Oppositions

The Court notes Defendants' "Omnibus

Opposition" is improper given the separate and distinct nature of the Motions. The

Court also notes the Omnibus Opposition is just a memorandum of points and

authorities and fails to include any evidentiary support.

Additionally, the Barnes Opposition is

untimely filed and served under Code of Civil Procedure section 1005. However,

given the Reply filed, the Court exercises its discretion to address the Barnes

Opposition on the merits.

The Replies

Finally, the Court notes that the

Reply to the Seropian Motion includes an argument improperly raised for the

first time in the Reply brief – namely, the Seropian Subpoena was never served.

(See Seropian Reply, p. 2.)

III.

Legal

Standard

Code of Civil Procedure section

1987.1, subdivision (a) provides, in pertinent part, as follows:

If a subpoena requires the attendance

of a witness or the production of books, documents, electronically stored

information, or other things before a court, or at the trial of an issue

therein, or at the taking of a deposition, the court, upon motion reasonably

made by any person described in subdivision (b), or upon the court's own motion

after giving counsel notice and an opportunity to be heard, may make an order

quashing the subpoena entirely, modifying it, or directing compliance with it

upon those terms or conditions as the court shall declare, including protective

orders. In addition, the court may make any other order as may be appropriate

to protect the person from unreasonable or oppressive demands, including

unreasonable violations of the right of privacy of the person.

(Code Civ. Proc., § 1987.1, subd.

(a).)

IV.

Discussion

A. The Motions

Barnes Motion

Turning first to the Barnes Motion,

the Court notes that Defendants, the moving parties for the subpoena in

question, have stated a willingness to withdraw the subpoena as to Barnes. (See Barnes Opp.)

Based on the subpoenaing party's

willingness to withdraw the subpoena, the Court GRANTS the Barnes Motion.

BD&J Motion, Kanarek Motion, and

Seropian Motion

Next, the Court addresses the BD&J,

Kanarek, and Seropian Motions. The Court addresses these motions together given

that the subpoenas rendered to each non-party contain nearly identical requests;

the Motions are nearly identical; the nature of each non-party is similar in

kind in that they are all attorneys/law firms representing the same client in

separate litigation – namely, Maria De Los Angeles Perez (see BD&J,

Kanarek, and Seropian Motions, pp. 1-2, Koppelman Decls.); and Defendants filed

an Omnibus Opposition to all three Motions.

Plaintiff moves to quash the subpoenas

directed at third party BD&J, a law firm; third party Kanarek, an attorney

from BD&J; and Seropian, an attorney, on the grounds the subpoenas are

overbroad, seek irrelevant material, and seek communications and documents protected

by the attorney-client privilege and work product privilege as well as the

common interest doctrine. (BD&J, Kanarek, and Seropian Motions, pp. 4-8.)

Further, Plaintiff contends Defendants have not shown good cause of direct relevance for the records sought in the BD&J, Kanarek, and Seropian subpoenas. (BD&J, Kanarek, and Seropian Motions, pp. 8-9.) Should the Court be disinclined to grant the Motions, Plaintiff requests the Court issue a protective order modifying and limiting the subpoenas. (BD&J, Kanarek, and Seropian Motions, pp. 8-9.) Finally, Plaintiff requests sanctions of \$2,500-\$4,000 be awarded against Defendants for each motion. (BD&J, Kanarek, and Seropian Motions, pp. 9-10.)

In the Omnibus Opposition, Defendants state Plaintiff has not met his burden to demonstrate the common interest doctrine applies in this case at all let alone to all the requested documents in the subpoenas. (Omnibus Opp., pp. 3-8.) Defendants further state the subpoenas are not fishing expeditions, and sanctions should not be awarded as the subpoenas were issued in good faith and seek discoverable information directly relevant to the action. (Omnibus Opp., pp. 8-9.)

Here, the Court finds a majority of the BD&J, Kanarek, and Seropian subpoena requests are overly broad in scope. While the Court acknowledges there is some relevance to some of the subpoenas' requests as they seek information from witnesses to the underlying incident in this matter – namely, it is undisputed by the parties that Kanarek and Seropian

were witnesses to Plaintiff's injury in the instant action (see Motions, Koppelman Decs.) – the subpoenas effectively ask for all communications and documents in each non-party's possession relating to the instant litigation or the non-parties' case with their client Perez. Given the sweeping nature of these requests, the Court finds the majority of the BD&J, Kanarek, and Seropian subpoenas are unduly burdensome and thus unenforceable. (See e.g., *Calcor Space Facility, Inc. v. Sup. Ct. (Thiem Indus., Inc.)* (1997) 53 Cal.App.4th 216, 222-223.)

Further, the Court finds that to the extent the subpoenas request communications or documents between BD&J, Kanarek, or Seropian and their client, Perez, such requests violate the attorney-client and work product privileges. (See Evid. Code, § 952.)

Insofar as the subpoenas request communications between BD&J, Kanarek, and Seropian and Plaintiff's counsel in this matter regarding Plaintiff, Defendants, or this action, the Court proceeds to address the work product privilege and the applicability of the common interest doctrine in an abundance of caution.

The 'joint defense privilege' and the 'common interest privilege' have not been recognized by statute in California. [Citations.]

For this reason, we will refer to the joint defense or common interest doctrine,

rather than the joint defense or common interest privilege, to avoid suggesting that communications between parties with common interests are protected from disclosure by virtue of a privilege separate from the attorney-client privilege, the work product doctrine, or any other statutorily recognized evidentiary privilege.

...

[T]he party seeking to invoke the doctrine must first establish that the communicated information would otherwise be protected from disclosure by a claim of privilege. For example, the content of the communication may comprise information shared in confidence by a client with his or her attorney, a legal opinion formed and advice given by the lawyer in the course of the attorney-client relationship, or a writing reflecting an attorney's impressions, conclusions, or theories. (See Evid. Code, § 952; Code Civ. Proc., § 2018, subd. (c).) The next step in the analysis is to determine whether disclosing the information to a party outside the attorney-client relationship waived any applicable privileges.

...

‘There is no statutory provision governing waiver of work product protection. [Citation.]’ [Citation.] However, California courts have recognized that the waiver doctrine is applicable to the

work product rule as well as the attorney-client privilege. [Citation.] The work product protection may be waived 'by the attorney's disclosure or consent to disclosure to a person, other than the client, who has no interest in maintaining the confidentiality ... of a significant part of the work product.'

[Citation.] Thus, work product protection 'is not waived except by a disclosure wholly inconsistent with the purpose of the privilege, which is to safeguard the attorney's work product and trial preparation.'

...

Thus, '[f]or the common interest doctrine to attach, most courts seem to insist that the two parties have in common an interest in securing legal advice related to the same matter—and that the communications be made to advance their shared interest in securing legal advice on that common matter.'

(OXY Resources California LLC v.

Superior Court (2004) 115 Cal.App.4th 874, 889-891, as modified.)

Applying these principles to the instant circumstances, the Court finds the communications or documents sought by Defendants' subpoenas between the subject non-parties and Plaintiff's counsel meet the common interest doctrine requirements.

First, the subpoenas' requested

communications or documentations are so broadly phrased that they encapsulate protected attorney work product of both the non-parties and Plaintiff – e.g., writings reflecting an attorney's impressions, conclusions, opinions, legal research, or theories. (See Code Civ. Proc., § 2018.030.)

Indeed, the Court finds the requests

here are broader than other requests where appellate courts have found a

party's refusal to produce all requested documents to a nonparty law firm

unjustified due to overbreadth. (See *Getz v. Superior Court* (2021) 72

Cal.App.5th 637, 657-658.) For example, in *Getz*, the Third District

Court of Appeal found that the common interest doctrine only applied to some of

the requested emails from defendant to a nonparty law firm, not all, and thus defendant's

refusal to "produce the text of the 42,852 indexed emails" on grounds of

overbreadth was unjustified. (*Id.*, at p. 657.) By contrast, the subpoena

requests here fail to even specify the kind or manner of communications

or documents sought from the subject non-parties and instead make sweeping

requests that are impossible to meaningfully and narrowly distinguish or

differentiate. As such, the Court finds the first requirement of the common

interest doctrine is satisfied.

Next, both Plaintiff's counsel and BD&J,

Kanarek, and Seropian in this matter have in common an interest in securing

legal advice related to the same matter of their clients who suffered harm from an identical uplift on Defendants' property in close temporal proximity, and these communications to each other were made to advance their shared interest in securing legal advice and strategy on the common matter of Defendants' liability for the uplift. (See *id.*; BD&J, Kanarek, and Seropian Motion, pp. 6-7, Koppelman Decls.)

Further, the non-parties and Plaintiff's counsel did not waive the work product protection as each had an interest in maintaining the confidentiality of a significant part of the work product given that there was "pooled discovery, shared photographs and video, deposition strategy on common witnesses, and analysis of Defendant's policies" between the non-parties and Plaintiff's counsel that were exchanged to further "efficient and informed prosecution of overlapping claims." (BD&J, Kanarek, Seropian Motions, pp. 6-7, Koppelman Decls.; OXY Resources California LLC, *supra*, 115 Cal.App.4th at pp. 889-991.)

Accordingly, the Court finds Plaintiff has satisfactorily shown the common interest doctrine applies to the communications and documents between the subject non-parties and Plaintiff's counsel sought by Defendants' subpoenas.

To the extent that Defendants state BD&J,

Kanarek, and Seropian are required to produce at least some requested documents

in response to the subpoenas or request an Evidence Code section 915 in-camera

hearing with the Court regarding the alleged protected/privileged materials, the

Court finds an overly broad and unduly burdensome subpoena does not warrant

compliance. Further, the Court may not order disclosure of a communication

claimed to be privileged to allow a ruling on the claim of privilege. (See Costco

Wholesale Corp. v. Superior Court (2009) 47 Cal.4th 725, 739.)

Finally, while a majority of the

subpoena requests are overbroad and/or impermissibly infringe on privileges,

the Court finds that certain of the subpoena requests warrant a privilege log. Specifically,

the Court finds that Request Nos. 1, 8, 13, 14, 17, and 20 in the BD&J,

Kanarek, and Seropian subpoenas warrant a privilege log to ascertain the

validity of the asserted privilege claims.

For all these reasons, the

Motions are GRANTED IN PART AND CONTINUED IN PART.

The Motions are GRANTED as

to all items except for the 1st, 8th, 13th, 14th, 17th, and 20th requests in

all the subject subpoenas.

The Motions are CONTINUED

as to these six items. The moving party on each respective motion to quash is

to produce a privilege log as to Request Nos. 1, 8, 13, 14, 17, and 20 in the BD&J, Kanarek, and Seropian subpoenas. Thereafter, the parties are to submit supplemental briefing prior to the next scheduled hearing to address whether any dispute regarding privilege still exists as to these items.

V.

Conclusion

& Order

For the foregoing reasons,

Plaintiff's Jaime Merchain's Motion to Quash Deposition Subpoena of Business

Records Served on Third-Party the Barnes Law Firm is GRANTED.

Plaintiff Jaime Merchain's

Motion to Quash Deposition Subpoena for Production of Business Records Served

on Third-Party BD&J Law Firm; Motion to Quash Deposition Subpoena for

Production of Business Records Served on Third-Party Jacob Seropian, Esq.; Motion

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